Terms and Conditions

Effective October 15, 2026. This version applies to every Firm that accepts it on or after that date. Earlier versions are kept on file and available on request. Download this version (PDF).

1. About these Terms

These Terms and Conditions (the "Terms") are a binding agreement between Marina Mitchell, a sole proprietor operating as No Hang Up, Toronto, Ontario (nohangup.ca) ("No Hang Up"), and the law firm that accepts these Terms at checkout (the "Firm"). The Firm's details are recorded in Schedule A through its setup form.

The No Hang Up Privacy Policy, published at nohangup.ca/privacy, forms part of these Terms. If the two conflict, these Terms govern between the Firm and No Hang Up.

Please read section 5 (billing), section 9 (limits of responsibility) and section 11 (ending the Service) carefully.

2. Accepting these Terms

- **The Firm accepts these Terms by checking the acceptance box at checkout and completing payment.** That acceptance is the Firm's electronic signature. No separate signed copy is needed, and these Terms take effect at that moment.
- The person who accepts confirms that they are authorized to bind the Firm, and confirms it again in the setup form.

- No Hang Up keeps a record of the acceptance, including the date and time, the name and email entered at checkout, and the version of these Terms accepted.
- No Hang Up emails the Firm a copy of these Terms and the Privacy Policy, as accepted, after the Firm submits its setup form. The Firm can also download them at any time from nohangup.ca/terms and nohangup.ca/privacy.
- Electronic signatures, checkbox acceptance and email are valid ways to sign these Terms, give notice under them and agree to changes.

3. Definitions

- **Service** — the AI receptionist that answers calls on the Firm's lines under these Terms.
- **Caller** — anyone whose call the Service answers.
- **Intake** — the information the Service collects from a Caller: name, phone number, what happened, injuries, the other party, and any other questions in the Firm's intake script.
- **Digest** — the morning summary sent to the Firm: urgent calls first, new intakes with full context, routine calls last.
- **Go-Live Date** — the day the Service first answers live calls on the Firm's lines.
- **Business day** — Monday to Friday, excluding Ontario statutory holidays.
- **Billing month** — each one-month period starting on day 8 and on the same date each month after that.

4. The pilot

4.1 Price. The pilot costs $97 Canadian dollars, plus HST when applicable, paid before setup. It includes up to 150 minutes of calls. If the Firm exceeds 150 minutes during the pilot, the Service continues through day 7. Excess minutes are deducted from Month 1's 500-minute allowance. If the Firm cancels by the end of day 7, no charge is made for excess minutes.

4.2 Payment method. The Firm provides a payment method at signup for the day-8 and monthly charges. It is stored securely by No Hang Up's payment processor, Stripe. No Hang Up never sees or stores full card numbers.

4.3 Setup. Before go-live, No Hang Up configures the Service with the Firm's name, intake questions and escalation rules, as the Firm approves them in writing (email is fine).

4.4 Go-live. No Hang Up will have the Service live within 5 business days after the Firm submits its setup form and provides its intake script and escalation rules.

4.5 Pilot period. The pilot runs for 7 days from the Go-Live Date, live on the Firm's lines. The Service answers calls under the Firm's rules and sends a Digest each morning.

4.6 Money-back guarantee. If the Firm tells No Hang Up in writing, before the end of day 7, that it does not want to continue, No Hang Up refunds the full $97, plus any HST actually collected, within 10 business days. No reason is required, and nothing further is charged.

5. After the pilot: automatic billing

5.1 Authorization. If the Firm does not cancel by the end of day 7, the Firm authorizes No Hang Up to charge the payment method on file automatically as set out below, until the Firm cancels.

ITEM	AMOUNT (CANADIAN DOLLARS, PLUS HST WHEN APPLICABLE)
Day 8 charge (first month's $497, less the $97 already paid)	$400 + HST when applicable
Monthly fee from month 2, charged on the same date each month	$497 + HST when applicable
Minutes included per billing month	500 (roughly 150 calls)

ITEM	AMOUNT (CANADIAN DOLLARS, PLUS HST WHEN APPLICABLE)
Each minute over 500, billed with the next monthly charge	$0.60 + HST when applicable
Setup fee for founding firms	$0

5.2 Minutes. Unused minutes do not carry over to the next billing month.

5.3 Taxes. All prices are in Canadian dollars and exclude HST. HST is charged on invoices as required by law once No Hang Up is HST-registered; until then, no HST is collected.

5.4 Failed payments. If the day-8 charge or any later monthly charge fails, No Hang Up retries the payment method after 3 days. Stripe automatically emails the Firm about the failed payment, and No Hang Up also notifies the Firm at its contact email in Schedule A so the issue can be fixed promptly. If the retry also fails, the Service is paused until the Firm updates its payment method. While the Service is paused, No Hang Up may provide limited message-taking as a courtesy, forwarding messages to the billing contact, with no Digest and no live answering. No Hang Up is not responsible for calls missed during the pause, and the Firm remains responsible for how its calls are handled, including its call forwarding. If the Firm neither pays nor cancels within 30 days after the pause, No Hang Up may end these Terms under section 11.

5.5 Price changes. No Hang Up gives at least 30 days' written notice before any price change. The Firm can cancel before the new price takes effect.

6. What the Service does and does not do

6.1 The Service does:

- Answer calls in the languages set out in Schedule A (English and Spanish by default), when the Firm's rules say to: line busy, after a set number of rings, no

answer, evenings, weekends or holidays.

- Introduce itself as the Firm's answering service and tell Callers they are speaking with an automated assistant.
- Tell every Caller at the start of the call that the call may be recorded.
- Take an Intake using the Firm's script and answer routine questions the Firm has approved.
- Flag urgent calls at the top of each morning Digest, under the Firm's escalation rules, and send alerts by email, and by text if text alerts are chosen in Schedule A and set up for the Firm before go-live.
- Send the Digest each morning at the time and to the email address set out in Schedule A.

6.2 The Service does not:

- Give legal advice, assess a case, quote fees or promise representation.
- Create a lawyer–client relationship between the Firm and any Caller. Only the Firm decides whom it represents.
- Transfer live calls to the Firm. The Service takes a detailed message instead.
- Book consultations into a calendar. This is not available yet; No Hang Up will confirm timing in writing if and when it is.
- Act as an emergency line. A Caller who says they are in danger is told to hang up and call 911.

6.3 AI-generated output. The Service uses artificial intelligence to hold conversations, transcribe calls and write Intakes and Digests. Calls are not monitored live by a person. AI can mishear, misunderstand or summarize inaccurately. Recordings and transcripts are kept for 30 days so the Firm can check what was said. The Firm should confirm important details directly with the Caller before relying on them.

7. The Firm's responsibilities

- Provide the intake script and escalation rules, and tell No Hang Up in writing when either changes.
- Make sure its script and instructions are lawful and consistent with its professional obligations, including Law Society rules.
- Set up call forwarding on its phone lines, with No Hang Up's help, and remove it when the Service ends.
- Read each Digest and follow up with Callers. The Service collects information; the Firm decides what to do with it.
- Keep responsibility for its own professional obligations, including conflict checks, client confidentiality and any limitation periods. Using the Service does not transfer any of these to No Hang Up.
- Keep its contact and payment details current.
- Do not provide payment-card numbers, Social Insurance Numbers (SIN), passwords, PINs, or biometric data through the Service. Intake may include health-related information Callers voluntarily provide for legal intake, such as injuries, hospital or doctor visits, and treatment including physical therapy. That information is provided to the Firm for legal intake, not for healthcare, and is handled as personal information under PIPEDA, with the safeguards, retention, and deletion in section 8. The Service is not a healthcare service.
- Use the Service only for lawful purposes. The Firm will not use the Service to impersonate anyone, commit fraud or deception, harass or spam, make political calls in violation of election/AI laws, circumvent safeguards, or train a competing AI model on AI outputs.

8. Confidentiality, privilege and data

8.1 Intake belongs to the Firm. No Hang Up uses Intake only to run the Service for the Firm. It never sells, shares or reuses it, and never uses identifiable information to train AI models. No Hang Up may keep aggregated statistics, such as call counts and call lengths, that cannot identify any Caller or the Firm, to run and improve the Service. Retell AI's own terms give Retell AI a broad licence to use content

submitted to its service in connection with that service, and allow Retell AI to use the Firm's name/logo in its marketing unless No Hang Up revokes that right in writing — No Hang Up will revoke it on request.

8.2 Privilege. No Hang Up receives Caller communications only as the Firm's agent, so the Firm can consider possible legal representation. No Hang Up treats all Intake as confidential, and nothing in these Terms waives any privilege belonging to the Firm or its clients. However, No Hang Up does not guarantee that solicitor-client privilege or litigation privilege will apply to communications handled through the Service. Whether privilege applies is decided by the courts, and, to No Hang Up's knowledge, no Canadian court has yet decided whether privilege extends to communications received through an AI answering service. If No Hang Up receives a court order, subpoena or other legal demand for Intake, it tells the Firm promptly, where the law allows, so the Firm can respond.

8.3 Providers. The providers needed to run the Service handle the data: Retell AI (phone and voice AI), Google (email) and Stripe (payments). Each is engaged to provide its service to No Hang Up; their own terms govern how they handle data (see Privacy Policy §5 for Retell AI's training use and subprocessors, and for telecom carriers acting as independent controllers). Retell AI's own terms state that, unless recording is opted out, it may use de-identified and aggregated call data to develop, train, and improve its AI models. No Hang Up does not opt out of recording because recordings and transcripts are needed to provide the Service. No Hang Up itself never uses identifiable information to train AI models. No Hang Up lists them in the Privacy Policy and tells the Firm before adding a new direct provider. No Hang Up has signed Retell AI's Data Processing Addendum (DPA), which covers GDPR/CCPA, not PIPEDA. Retell AI may add subprocessors under its DPA with notice; see Privacy Policy §5 for the current subprocessor list. Retell AI itself uses subprocessors to carry calls — telecom carriers, AI model providers, and cloud hosting — listed at trust.retellai.com/subprocessors. For more detail, see Retell AI's Terms of Service (retellai.com/legal/terms-of-service, as of October 7, 2026) and Privacy Policy (retellai.com/legal/privacy-policy, as of July 20, 2026). If Retell AI materially changes its terms in a way that conflicts with No Hang Up's commitments in these Terms — including training, retention, deletion, or subprocessors — No Hang Up will notify the Firm promptly, and the Firm may

cancel under section 11.2. No Hang Up's commitments in these Terms control over any conflicting Retell AI change.

8.4 Where it is stored. Primarily United States. Retell AI and its telecom providers may process data in other jurisdictions as needed to carry calls.

8.5 How long it is kept. Call recordings and transcripts held by Retell AI for 30 days (Retell AI retains some basic metadata after that); Intake details and Digests held by No Hang Up for 90 days; then deleted. The Firm keeps its own copy of every Digest in its email.

8.6 When the Firm leaves. No Hang Up deletes the Firm's data within 30 days after the Terms end, after giving the Firm a chance to export it, except data Retell AI must retain as required by law or per its standard backup retention, which is kept confidential and not further processed.

8.7 Security incidents. If No Hang Up learns that the Firm's data may have been accessed without authorization, it tells the Firm without delay, and within 72 hours.

8.8 Business information. Both sides keep the other's non-public business information confidential, during these Terms and after they end.

9. Outages and limits of responsibility

9.1 Outages. If the Service goes down, No Hang Up works to restore it promptly and tells the Firm about any outage longer than 1 hour, crediting the affected days on the next bill. Where the Firm's phone setup allows it, calls fall back to the Firm's normal voicemail during an outage. Retell AI does not guarantee uninterrupted service; No Hang Up's outage notice and credit are No Hang Up's own commitments, not Retell AI's.

9.2 No guarantee of every call. The Service is provided as described in section 6. No Hang Up does not guarantee that every call will be answered or that every Intake will be complete or accurate; calls answered by the Service and logged by Retell AI appear in the Digest so the Firm can check.

9.3 Firm decisions. No Hang Up is not responsible for decisions the Firm makes based on an Intake, or for missed deadlines or limitation periods.

9.4 Call forwarding. No Hang Up is not responsible for any calls, clients or business the Firm loses because the Firm did not remove the call forwarding after the Service ends.

9.5 Indirect losses. Neither side is responsible to the other for indirect or consequential losses, including lost profits, lost clients or lost business opportunities.

9.6 Cap. No Hang Up's total liability under these Terms is limited to the fees the Firm paid in the 3 months before the claim.

9.7 Exceptions. Sections 9.5 and 9.6 do not limit liability for fraud or wilful misconduct, or the Firm's obligation to pay fees.

10. Indemnity

The Firm will cover No Hang Up's reasonable costs, including legal fees, of any claim by a third party arising from the Firm's intake script or instructions, the Firm's use of Intake after it is delivered, or the Firm's professional obligations.

11. Term, cancellation and ending the Service

11.1 Term. These Terms start when the Firm accepts them and continue month to month until ended under this section.

11.2 Cancellation by the Firm. The Firm can cancel at any time by emailing payments@nohangup.ca or in the customer portal. Cancellation takes effect at the end of the current billing month; no further charges are made after that. Apart from the pilot guarantee in section 4.6, fees already paid are not refunded for a partial month.

11.3 Ending by No Hang Up. No Hang Up can end these Terms with 30 days' written notice, refunding any prepaid fees for days after the end date.

11.4 Serious breach. Either side can end these Terms right away if the other seriously breaches them and does not fix the breach within 10 days of written notice.

11.5 Non-payment. No Hang Up can end these Terms as set out in section 5.4.

11.6 When the Service ends. The Firm removes the call forwarding from its lines. No Hang Up deletes the Firm's data as set out in section 8.6. Any fees owed up to the end date remain payable.

11.7 Survival. Sections 8, 9, 10 and 12, and any fees owed, continue after these Terms end.

12. General terms

12.1 Ownership. No Hang Up owns the prompts, configurations, scripts and methods it creates to provide the Service. The underlying telephone, voice and AI software is provided by Retell AI and its providers and remains their property. The Firm owns its name, intake script and Intake data (and receives a copy of every Digest), and gives No Hang Up permission to use them only to run the Service. Retell AI retains ownership of its underlying AI models and a licence to AI-generated content (transcripts, summaries, analytics) as set out in Retell AI's own terms; No Hang Up does not grant the Firm any rights in Retell AI's models.

12.2 Governing law. These Terms are governed by the laws of Ontario and the federal laws of Canada that apply there. The courts of Ontario, sitting in Toronto, decide any dispute.

12.3 Events beyond control. Neither side is responsible for delays or failures caused by events beyond its reasonable control, such as outages of telephone networks or providers, power failures, cyberattacks, natural disasters or government action. Fees are credited for any days the Service cannot run, as set out in section 9.1.

12.4 Transfer. The Firm cannot transfer these Terms without No Hang Up's written consent. No Hang Up may transfer them, with written notice to the Firm, to a corporation it controls or to a buyer of the business, on the same terms.

12.5 Notices. Notices to No Hang Up go to support@nohangup.ca (general and privacy) or payments@nohangup.ca (billing and cancellation). Notices to the Firm go to the contact email in Schedule A.

12.6 Changes. Apart from price changes under section 5.5, changes to these Terms must be in writing and agreed by both sides; email counts. Retell AI may change its own terms, or suspend or terminate its service to No Hang Up; if that affects the Service, No Hang Up will notify the Firm promptly.

12.7 Relationship. The two sides are independent businesses. Nothing in these Terms creates a partnership, employment or lawyer–client relationship between them.

12.8 Whole agreement. These Terms, Schedule A and the Privacy Policy are the whole agreement. If any part is found unenforceable, the rest still applies. Not enforcing a term right away does not waive it.

Schedule A — Firm setup details

Completed by the Firm through the setup form it receives right after checkout. The Firm's answers in that form are Schedule A and form part of these Terms. Changes can be agreed by email.

FIELD	FIRM DETAILS
Firm legal name	
Firm address	
Name and title of the person accepting for the Firm (authorized to bind the Firm)	

FIELD	FIRM DETAILS
Contact person and title	
Contact email (notices, billing and failed-payment notices)	
Phone lines covered by the Service	
When the Service answers (busy, after how many rings, evenings, weekends, holidays)	
Languages (English and Spanish by default)	
Digest email address	
Digest delivery time	
Urgent alerts (text and/or email; number and/or address)	
Founding firm (setup fee $0): yes / no	

Record of acceptance

These Terms are accepted electronically at checkout, as set out in section 2. No handwritten or separate signature is required from either side. No Hang Up accepts these Terms by starting setup for the Firm. If a Firm asks for a signed copy for its own records, No Hang Up will provide one, but the Terms are binding without it.